

26NWCV00761 26NWCV00761

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KARINA SANCHEZ, ET AL. v. EVER ALEJANDRO RIVERA, ET AL.

CASE NO.: 26NWCV00761

HEARING: 09/17/2026 @ 9:30 AM

#12

TENTATIVE ORDER

Defendants Ever Alejandro Rivera
and Neri Arroyo's motion to strike portions of the
complaint is GRANTED with 30 days LEAVE TO AMEND.

Moving party to give notice.

Defendants Ever Alejandro Rivera and Neri Arroyo
(Defendants) move to strike portions of the complaint seeking punitive damages.

Background

On February 27, 2026, Plaintiffs Karina Sanchez and Anthony Beltran (Plaintiffs) filed this personal injury action against Defendants and Does 1 through 25. The form complaint alleges that on November 23, 2025, at Florence Ave & Crafton Ave, Bell, CA 90201, Plaintiffs sustained injuries after Arroyo negligently entrusted a vehicle to Rivera and Rivera swerved the vehicle and collided into Plaintiffs' vehicle to avoid rear-ending the vehicle in front of his. The complaint alleges that this is a hit and run incident as Rivera

proceeded to flee the scene. The complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

Legal Standard

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435, subd. (b)(1).) The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) “Malice” refers to conduct “intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Oppression” means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person’s rights. (Civ. Code, § 3294, subd. (c)(2).) “Fraud” means an “intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) The basis for punitive damages must be pled with specificity; conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Meet and Confer

"Before filing a motion to strike...the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike."
(Code Civ. Proc., § 435.5, subd. (a).)

The parties adequately met and conferred. (Jozana Decl., ¶ 4.)

Discussion

Defendants move to strike the following portions of the complaint seeking punitive damages: (1) Page 3, paragraph 14, section a(2); (2) Page 5, "Defendant then proceeded to flee the scene to avoid liability. This was a HIT AND RUN incident..."; and (3) Page 5, "reasonably knowing that Defendant..."

The complaint alleges: "Defendant was about to rear-end the vehicle directly in front of him. To avoid impact, Defendant swerved his car to the left, and made impact and collided into Plaintiffs' vehicle. Defendant then proceeded to flee the scene to avoid liability. This was a HIT AND RUN incident. Plaintiffs were able to get a video of Defendant's license plate."
(Complaint, p. 5.) Further, the complaint alleges "causing Plaintiffs' to follow Defendant to capture his license plate to provide to police demonstrates [sic] despicable conduct with a willful and conscious disregard for the safety of others, including motorists and pedestrians lawfully using the roadway. In fact, VC 20001 allows for imprisonment in state prison for up to four years if an individual causes serious injury and flees the scene, which was the situation here. The fact that the VC punishes individuals [sic] with prison time for this conduct showcases the severity of the nature of hit and run incidents and how despicable this conduct is, which again was the situation [sic] here." (Complaint, p. 5.)

Defendants argue that the complaint does not meet the heightened requirements for establishing a claim for punitive damages.

In opposition, Plaintiffs argue that Defendants conflate intent to injure with the definition of malice. Plaintiffs argue that hit and runs constitute despicable conduct.

To allege a 'conscious disregard' of a plaintiff's rights as opposed to an actual intent to harm, Civil Code section 3294 imposes additional requirements of 'despicable' and 'willful' conduct. (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 713.) "As amended to include this word [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (Id. at p. 725, citations omitted.) "In order to justify an award of punitive damages on [the basis of a conscious disregard of the safety of others], the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences." (Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-96.)

In motor vehicle collision cases, courts have identified:

[A]llegations of intoxication, excessive speed, driving with defective equipment or the running of a stop signal, without more, do not state a cause of action for punitive damages. [Par.] On the other hand, if the facts show that the defendant intentionally drove his vehicle at a high speed into an intersection crowded with pedestrians, or if he drove at a high speed through a crowded residential area where children were playing in the street, a legitimate inference of actual malice perhaps could arise.

(Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 90, citation omitted.) "The failure to stop and render aid has a two-fold significance: (1) It may result in liability for the aggravation of injuries sustained in the accident or additional injuries incurred after it; (2) it may constitute evidence of responsibility for the accident." (Karl v. C.A. Reed Lumber Co. (1969) 275 Cal.App.2d 358, 362 [addressing hit and runs in the context of jury instructions], citing Brooks v. E.J. Willig Truck Transp. Co. (1953) 40 Cal.2d 669, 679.)

Here, based on the allegations of the complaint, the conduct that allegedly caused the injury was Arroyo swerving into Plaintiff's vehicle "[t]o avoid impact" because "Defendant was about to rear-end the vehicle directly in front of him." (Complaint, p. 5.) The conduct

in hitting and running occurred after the conduct that caused the subject collision. The complaint does not allege that Defendants willfully and deliberately failed to avoid the conduct that arose in injuries. (See Taylor, supra, 24 Cal.3d at p. 895-96.) The complaint does not allege that further injuries occurred based on the conduct after the collision. Moreover, to the extent that the hit and run shows consciousness, coupled with the allegations of the cause of the collision it does not rise to a conscious disregard of Plaintiffs' rights. "Alone, it is not sufficient to establish liability, but flight immediately after an accident is a circumstance that may be considered with other facts in the case as tending to show a consciousness of responsibility for the accident." (Karl, supra, 275 Cal.App.2d at p. 362.) Thus, the Court agrees that the allegations in the complaint are insufficient to establish that Defendants were motivated to injury Plaintiffs for purposes of alleging a punitive damages claim.

Accordingly, Defendants' motion to strike portions of the complaint is GRANTED with 30 days LEAVE TO AMEND.